

complaint

This complaint concerns a claim that Ms H made in January 2014 under her contents insurance policy. Ms H is unhappy that UK Insurance Limited is unwilling to accept damage to her sofa, rug and carpet as part of the claim. She has also asked for UK Insurance to cover the cost of the upholsterer she appointed.

background

Mr H notified UKI on behalf of Ms H after they had noticed an escape of water at their home. Ms H says that the escape of water from the bathroom waste pipe had damaged her sofa, rug and carpet as well as some electrical items.

UKI accepted the claim for the loss of the electrical items but it did not meet the claim for the sofa, rug and carpet as it did not think the damage was consistent with an escape of water. It believed that it was due to other reasons such as wear and tear and spillages.

Ms H was unhappy with this and referred the matter here. She says that they were advised in a phone call that those three items would be covered under the claim but the call handler has since left.

Our adjudicator did not recommend that the complaint be upheld as he didn't find that the damage to the sofa, rug and carpet was consistent with an escape of water. Ms H appealed.

my findings

I have only included a brief summary but I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint. I recognise that Ms H will be disappointed by my decision but I do not uphold her complaint. I will explain why.

There is no dispute that there was an escape of water from her bathroom which caused damage to some items in Ms H's home. I accept too that Mr H attempted to clean the items. However, the evidence does not show that the damage to her sofa, rug and carpet was caused by the escape of water. The loss assessor who attended did note an orange stain to the carpet, but as there was no staining on the ceiling above the stain he concluded that the stain was pre-existing. Likewise he found some damage to the rug - it curled up at the edges, was not flush to the floor and had some bald patches - but he could not say that this damage was as a result of the water leak.

Ms H had asked an upholsterer to view her sofa and provide a quote for re-covering. He said it was only a possibility that the damage was caused by the escape of water. He did report that there was oil and dirt staining on the seats. In all the circumstances, I am not persuaded that the damage was caused by the escape of water from the bathroom. It seems more likely that it was caused by wear and tear or general usage, which is not covered by the policy. As her policy says that that written estimates are to be provided at the policyholder's expense, I don't think U K Insurance is liable to reimburse Ms H for the cost of the upholsterer's report.

Ms H is also unhappy because she says Mr H was told that her claim for these items would be met. She says that the adviser is no longer with the insurer. There is no record of such a conversation on the insurer's file, so it seems unlikely that Mr H was told this in error. But there is nothing to suggest that she acted to her disadvantage on the basis of any incorrect

information that she says Mr H was given – for example by replacing her damaged items. Furthermore, I am satisfied that she was told within a reasonable time frame that this part of her claim would *not* be met.

In the light of the above I do not think that U K Insurance treated Ms H unfairly in declining to meet the claim for her sofa, rug and carpet.

my final decision

My final decision is that I do not uphold this complaint. I make no award against UK Insurance Limited.

Under the rules of the Financial Ombudsman Service, I am required to ask Ms H to accept or reject my decision before 7 September 2015.

Lindsey Woloski
ombudsman